

SEP 20 2022

Sherri R. Carter, Executive Officer/Clerk
By , Deputy
Anoush Nichitarian

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES – CENTRAL DISTRICT

In re Personal Injury Cases Assigned to the)	EIGHTH AMENDED STANDING ORDER
Personal Injury Hub Courts (Spring Street)	FOR PROCEDURES IN THE PERSONAL
Courthouse))	INJURY HUB COURTS EFFECTIVE
)	OCTOBER 10, 2022
)	

**STANDING ORDER RE: PROCEDURES AT PERSONAL INJURY
HUB COURTS AT THE SPRING STREET COURTHOUSE**

The Superior Court of California, in and for the County of Los Angeles (Superior Court, Los Angeles County), hereby issues the following order prescribing the procedures to be followed in the Personal Injury Hub Courts at the Spring Street Courthouse.

1. Authority

This order is being made pursuant to the Code of Civil Procedure, the California Rules of Court, rule 3.720, and the Superior Court, Los Angeles County, Local Rules, rule 3.23. It supersedes the following General and Standing Orders:

- A. Amended General Order Re: General Jurisdiction Personal Injury Cases – Filing Location (5/16/2014);
- B. First Amended Standing Order Re: Final Status Conference, Personal Injury (“PI”) Courts (4/16/2018);

- 1 C. First Amended Standing Order Re: Personal Injury Procedures at the Spring
2 Street Courthouse (2/24/2020);
- 3 D. Third Amended Standing Order Re: Final Status Conference, Personal Injury
4 ("PI") Courts (2/24/2020);
- 5 E. Fifth Amended Standing Order Re: Mandatory Settlement Conference
6 (2/24/2020);
- 7 F. Amended Supplemental Standing Order re Covid Protective Measures Related to
8 Final Status Conferences in Personal Injury Cases at the Spring Street Courthouse
9 (12/22/2020);
- 10 G. Sixth Amended Standing Order Re: Mandatory Settlement Conference
11 (6/23/2021);
- 12 H. Second Amended Supplemental Standing Order re Covid Protective Measures
13 Related to Final Status Conferences in Personal Injury Cases at the Spring Street
14 Courthouse (10/08/2021) and
- 15 I. Seventh Amended Standing Order for Procedures in the Personal Injury Hub
16 Courts (5/16/2022).

17 **2. Assignment of Personal Injury (PI) Cases to Judicial Districts; Assignments within**
18 **Central District**

- 19 • Unless otherwise ordered, all pending cases remain where they are assigned.
- 20 • On or after October 10, 2022, all newly filed PI cases, as defined in Los Angeles
21 County Local Rules, rule 2.3, shall be filed in the judicial district where the
22 incident arose.

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- Parties filing PI cases should use the filing court locator on the Los Angeles Superior Court website to determine the appropriate filing location (www.lacourt.org and <https://www.lacourt.org/filinglocator/ui/filingsearch.aspx?CT=CI>).

On or after October 10, 2022, all newly filed PI cases assigned to the Central District shall be assigned to a Personal Injury Hub court unless the case type is one of the following:

- ☐ 2401 Product Liability (not asbestos or toxic/environmental)
- ☐ 2402 Product Liability – Song-Beverly Consumer Warranty Act (Civil Code, sections 1790-1795.8) (Lemon Law)
- ☐ 2305 Elder/Dependent Adult Abuse and Claims Against Skilled Nursing Facility
- ☐ 2306 Intentional Conduct - Sexual Abuse Case (in any form)
- ☐ 2308 Landlord - Tenant Habitability (e.g., bed bugs, mold, etc.)
- ☐ 4501 Medical Malpractice - Physicians & Surgeons
- ☐ 4502 Other Professional Health Care Malpractice

These cases will be assigned to Independent Calendar Courts which will handle such cases for all purposes, including trial.

3. Assignment to PI Hub Court and Final Status Conference, Trial, and Order to Show Cause Dates

All PI Cases filed in the Central District will be assigned to the PI Hub Court. Upon filing, a case will be assigned a trial date approximately 18 months from the filing date, a Final Status Conference (FSC) date approximately eight court days prior to the trial date, and a date for a hearing on an Order to Show Cause why the case should not be dismissed pursuant to Code of Civil Procedure, sections 583.410 and 583.420 approximately 24 months from the filing date.

4. Transferring Cases from the PI Hub Courts

The PI Hub Courts may transfer a case *sua sponte* based upon a determination that the case is either not a PI case or that it requires more case management than the PI Hub Courts can provide, given their case inventories.

5. Filing of Documents

Except for self-represented litigants or counsel who have obtained an exemption from mandatory electronic filing, parties must electronically file documents. Filings are no longer accepted via facsimile. The requirements for electronic filing are detailed in the Superior Court, Los Angeles County's operative General Order Re Mandatory Electronic Filing for Civil, available online at <https://www.lacourt.org/division/efiling/pdf/GenOrdCivilEfiling.pdf>.

6. Service of Summons and Complaint

Plaintiff(s) shall serve the summons and complaint upon defendant(s) within 60 days of filing of the complaint. (California Rules of Court, rule 3.110 (b).) Failure to do so may result in the imposition of sanctions. (Code of Civil Procedure, sections 128, 177.5; California Rules of Court, rule 2.30.) In addition, at a hearing on an Order to Show Cause re Dismissal (described in Paragraph three above), the PI Hub Courts may dismiss the case and/or all unserved parties unless plaintiff(s) shows cause why the case or the unserved parties should not be dismissed. (Code of Civil Procedure, sections 583.410, 583.420.)

7. Stipulations to Advance or Continue Trial

The Court may honor stipulations by all parties to a case to advance or continue a trial, provided that the proposed trial date is not beyond 24 months of the filing of the complaint, without a showing of good cause.

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1 To advance or continue a trial date, the parties (or their counsel of record) should
2 jointly execute and submit a (Proposed) Order and Stipulation to Continue Trial, FSC [and
3 Related Motion/Discovery Dates Personal Injury Courts Only (Central District)] (LACIV-
4 CTRL242). The PI Hub Courts schedule FSCs at 10:00 a.m., approximately eight court days
5 before the trial date. Parties seeking to advance or continue trial and FSC dates shall file the
6 stipulation at least eight court days before the existing FSC date. (Code of Civil Procedure,
7 section 595.2; Government Code, section 70617(c)(2).) In selecting a new trial date, parties
8 should avoid setting on Mondays, or Tuesdays following a court holiday.

9 Parties may submit a maximum of two stipulations to continue trial for a total
10 continuance of six months before 24 months of the filing of the complaint. Other requests to
11 continue trial will be granted only upon a showing of good cause by noticed motion.

12 **8. No Case Management Conferences**

13 The PI Hub Courts do not conduct case management conferences. Thus, the parties need
14 not file a Case Management Conference Statement.

15 **9. Law and Motion**

16 **A. Reservation Hearing Date**

17 Parties must reserve hearing dates for motions in the PI Hub Courts using the
18 Court Reservation System (CRS) available online (www.lacourt.org). After reserving a motion
19 hearing date, the reservation requestor must submit the moving papers for filing with the
20 reservation receipt number printed on the face page of the document under the caption and attach
21 the reservation receipt as the last page.

22 As soon as a reservation requestor realizes that a motion hearing, or other
23 proceeding requiring a reservation in the PI Hub Courts, such as in Informal Discovery

1 Conference (IDC) will not be necessary, the reservation requestor shall immediately use CRS to
2 cancel the reservation for the motion hearing, or other proceeding requiring a reservation.

3 If the moving party deems the hearing date to be too far in the future (for example, after
4 the trial date), parties should check CRS from time to time because earlier hearing dates may
5 become available as cases settle or hearings are taken off calendar. Except in extraordinary
6 circumstances, the court will not grant ex parte applications to advance a hearing date because it
7 is set after a trial date. If a hearing is set after the trial date, the moving party should seek to
8 continue the trial by noticed motion instead.

9 B. Electronically Filed Documents

10 Any and all electronically filed documents must be text searchable and
11 bookmarked pursuant to the operative General Order re Mandatory Electronic Filing for Civil,
12 General Order re Mandatory Electronic Filing in Civil.

13 C. Courtesy Copies

14 Courtesy copies are required for Ex Parte Applications, Motions for Summary
15 Judgment, Oppositions to Ex Parte Applications and Motions for, Oppositions to, and Replies to
16 Oppositions to Motions for Summary Judgment or Summary Adjudication.

17 Courtesy copies must be submitted directly to the assigned PI Hub Court at the
18 Spring Street Courthouse. The PI Hub Courts strongly encourage the parties filing and
19 opposing lengthy motions for summary judgment or adjudication, to submit one or more three-
20 ring binders organizing the courtesy copies behind tabs. Any courtesy copies of documents
21 with declarations and/or exhibits must be tabbed. (California Rules of Court, rule 3.1110(f).)
22 All deposition excerpts referenced in briefs must be marked on the transcripts attached as

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1 exhibits. (California Rules of Court, rule 3.1116(c).) Courtesy copies, including any media
2 attached thereto, will be destroyed by the Court without notice following the hearing.

3 D. Withdrawal of Motions

4 If a moving party takes a motion off a PI Hub court's calendar, the moving party
5 must notify the court immediately and should remove the item from the Court's calendar on
6 CRS. (California Rules of Court, rule 3.1304(b).) If, in response to a demurrer or a motion to
7 strike, a party exercises its right to amend a pleading as prescribed by Code of Civil Procedure
8 section 472(a), the court requests that party work with the party who filed the demurrer or motion
9 to strike to take the demurrer or motion to strike off calendar so that the PI Hub Courts do not
10 needlessly prepare tentative rulings.

11 E. Motions to Compel Further Responses to Discovery

12 PI Hub Courts will not hear Motions to Compel Further Discovery Responses to
13 Discovery until the parties have engaged in an Informal Discovery Conference (IDC).

14 PI Hub Courts may deny or continue a Motion to Compel Further Responses to
15 Discovery if parties fail to schedule and complete an IDC before the scheduled hearing on a
16 Motion to Compel Further Responses to Discovery.

17 After meeting and conferring about available dates for an IDC, the
18 moving/propounding party shall reserve an IDC through CRS (see paragraph 9 above) and
19 provide notice of the reserved IDC to the opposing/responding party by filing and serving an
20 Informal Discovery Conference Form for Personal Injury Courts LASC CIV 239 at least 15
21 court days before the IDC and attach the CRS reservation receipt as the last page. **The IDC will**
22 **not be "scheduled" by the court until the IDC Form is filed.** The opposing/responding party

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1 may file and serve a responsive IDC Form at least 10 court days before the IDC. All parties
2 shall briefly set forth their respective positions on the pending discovery issues on the IDC Form.

3 Ideally, the parties should participate in an IDC before a Motion to Compel
4 Further Discovery Responses is filed because the IDC may avoid the necessity of such a motion
5 or, at least, reduce its scope. Because of that possibility, parties are encouraged to stipulate to
6 extend the deadline for filing a Motion to Compel Further Discovery Responses by 60 days in
7 order to allow time to participate in an IDC and to informally resolve the pending discovery
8 issues.

9 Note: Reserving or scheduling an IDC **does not extend the time to file a Motion**
10 **to Compel Further Discovery Responses.**

11 If parties do not stipulate to extend the deadline(s) to file a Motion to Compel
12 Further Discovery Responses, the moving/propounding party may file the motion to avoid it
13 being deemed untimely. However, the IDC must take place before the motion is heard so it is
14 suggested that the moving party reserve a date for the motion hearing that is at least 60 days after
15 the date when an IDC is scheduled. Note: A party's failure to stipulate to extend the time to
16 bring a Motion to Compel Further Discovery Responses so that an IDC may be held may subject
17 the parties and/or counsel to the imposition of sanctions.

18 The PI Hub Courts have found that, in most cases, IDCs are successful at assisting
19 the parties to amicably resolve their discovery disputes, and in resolving the case as a whole.
20 The purpose of the IDC is to assist the parties to resolve and/or narrow the scope of discovery
21 disputes. Therefore, parties, through their respective counsel of record with full authority to
22 make binding agreements, shall participate in the scheduled IDC. The PI Hub Courts have found
23 that most discovery disputes result from a failure to meaningfully meet and confer on the pending

1 discovery issues. The PI Hub Courts generally find that meeting and conferring by only
2 exchanging letters and e-mails, as opposed to actual conversation, are insufficient and
3 ineffective. Thus, in requesting an IDC, the parties must indicate on their IDC forms what efforts
4 were made to informally resolve pending discovery issues, which must include in-person or
5 virtual meetings or telephonic communications. (The PI Hub Courts require this same showing
6 in declarations filed in support of, and in opposition to, Motions to Compel Further Discovery
7 Responses.)

8 Time permitting, the PI Hub Courts may be available to conduct IDCs to resolve
9 other types of discovery disputes.

10 **10. Ex Parte Applications**

11 The PI Hub Courts will only grant ex parte relief upon a showing, by admissible
12 evidence, that the moving party will suffer “irreparable harm,” “immediate danger,” or where
13 the moving party identifies “a statutory basis for granting relief ex parte.” (California Rules of
14 Court, rule 3.1202(c).) The PI Hub Courts have no capacity to hear multiple ex parte
15 applications or to shorten time to add hearings to their fully booked motion calendars. Given
16 the PI Hub Courts’ impacted calendars, a PI Hub Court’s unavailability for timely motion
17 hearings is not an “immediate danger” or threat of “irreparable harm” justifying ex parte relief.
18 Instead of seeking ex parte relief, the moving party should reserve the earliest available motion
19 hearing date (even if it is after the scheduled trial date) and file a noticed motion to continue the
20 trial.

21 And, again, parties should check CRS from time to time because earlier hearing dates
22 may become available as cases settle or hearings are taken off calendar.

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11. Jury Fees

Parties must pay jury fees no later than 365 calendar days after the filing of the initial complaint. (Code of Civil Procedure, section 631(c)(2).)

12. Final Status Conference

A. Purpose

The purpose of the FSC is to verify that the parties are completely ready to proceed with trial continuously and efficiently, from day to day, until verdict. The PI Hub Courts will verify at the FSC that all parties have (1) prepared all necessary trial documents, and (2) met and conferred in an effort to stipulate to ultimate facts, legal issues, Motions in Limine, and the authentication/foundation and admissibility of exhibits.

B. Trial Documents to Be Filed

At least five calendar days prior to the FSC, the parties shall serve and file the following Trial Readiness Documents:

1. Trial Briefs (Optional)

Each party may, but is not required to, file a trial brief succinctly identifying:

- a. the claims and defenses subject to litigation;
- b. the major legal issues (with supporting points and authorities);
- c. the relief claimed and calculation of damages sought; and
- d. any other information that may assist the court at trial.

2. Motions in Limine

Before filing Motions in Limine, the parties shall comply with the statutory notice provisions of Code of Civil Procedure section 1005 and the requirements of the

1 Superior Court, Los Angeles County, Local Rules, rule 3.57(a). The caption of each Motion in
2 Limine shall concisely identify the evidence that the moving party seeks to preclude. Parties
3 filing more than one Motion in Limine shall number them consecutively. Parties filing
4 opposition and reply documents shall identify the corresponding motion number in the caption.

5 3. Joint Statement to Be Read to the Jury

6 For jury trials, the parties shall prepare and file a joint written statement
7 of the case for the trial court to read to the jury. (Superior Court, Los Angeles County, Local
8 Rules, rule 3.25(g)(4).)

9 4. Joint Witness List

10 The parties shall prepare and file a joint, alphabetized by last name, list of
11 all witnesses that each party intends to call, excluding impeachment and rebuttal witnesses.
12 (Superior Court, Los Angeles County, Local Rules, rule 3.25(g)(5).) The joint witness list shall
13 identify each witness by name, specify which witnesses are non-experts and experts, estimate
14 the length of the direct, cross, and re-direct examination of each witness, and include a total
15 number of hours for all witness testimony. The parties shall identify all potential witness
16 scheduling issues and special requirements. Any party who seeks to elicit testimony from a
17 witness not identified on the witness list must first make a showing of good cause to the trial
18 court.

19 5. List of Proposed Jury Instructions (Joint and Contested)

20 The parties shall jointly prepare and file a list of proposed jury
21 instructions, organized in numerical order, including columns to indicate whether an instruction
22 is agreed to or contested. In addition, the List of Proposed Jury Instructions must include

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1 columns for a trial judge to indicate whether an instruction was given, given as modified, refused
2 or withdrawn. (California Rules of Court, rule 2.1055.)

3 6. Jury Instructions (Joint and Contested)

4 The parties shall prepare a complete set of full text proposed jury
5 instructions in a format ready for submission to the jury, by editing all proposed California Civil
6 Jury Instructions including inserting party name(s) and eliminating blanks, brackets, and
7 irrelevant material. The parties may prepare special instructions in a format ready for submission
8 to the jury with the instruction number, title, and text only (**i.e., there should be no boxes or**
9 **other indication on the printed instruction itself as to which party is requesting the**
10 **instruction**).

11 7. Joint Verdict Form(s)

12 The parties shall prepare and jointly file a proposed general verdict form
13 or special verdict form (with interrogatories) acceptable to all parties. (Superior Court, Los
14 Angeles County, Local Rules, rule 3.25(g)(8).) If the parties cannot agree on a joint verdict form,
15 each party must separately file a proposed verdict form.

16 8. Joint Exhibit List

17 The parties shall prepare and file a joint exhibit list organized with
18 columns identifying each exhibit, setting forth stipulations, if any, to authenticity/foundation
19 and admissibility of exhibits, and specifying evidentiary objections, if any, to the admission of
20 an exhibit. If an objection to an exhibit is not articulated on the exhibit list, the trial court may
21 deem the exhibit admitted. The parties shall meet and confer regarding stipulations to
22 authenticity/foundation and admissibility of exhibits, and to resolve objections, if any, to the
23 admission of an exhibit, before filing the Joint Exhibit List.

1 9. Page and Line Designation for Deposition and Former Testimony

2 If the parties intend to use deposition testimony or former trial testimony
3 in lieu of any witness' live testimony, the parties shall meet and confer, and jointly prepare and
4 file a chart with columns for each of the following: 1) the page and line designations of the
5 deposition or former testimony requested for use, 2) objections, 3) counter-designations, 4) any
6 responses thereto, and 5) the court's ruling.

7 C. Items to be Presented at the Final Status Conference

8 1. Trial Binders

9 The parties shall jointly prepare (and be ready to temporarily lodge) 3-
10 ring binders containing conformed (filed in eCourt) copies of all the following:

11 **Tab A:** Trial Briefs (Optional)

12 **Tab B:** Motions in Limine

13 The parties shall organize Motions in Limine (tabbed in numerical order)
14 with the opposition papers and reply papers for each motion placed
15 directly behind the moving papers.

16 **Tab C:** Joint Statement to Be Read to the Jury

17 **Tab D:** Joint Witness List

18 **Tab E:** Joint List of Jury Instructions (identifying the agreed upon and
19 contested instructions)

20 **Tab F:** Joint and Contested Jury Instructions

21 The parties shall organize proposed jury instructions with the agreed upon
22 instructions first in order followed by the contested instructions (including
23 special instructions) submitted by each party.

Tab G: Joint and/or Contested Verdict Form(s)

Tab H: Joint Exhibit List

Tab I: Joint Chart of Page and Line Designation(s) for Deposition and Former Testimony

Tab J: Copies of the Current Operative Pleadings (including the operative complaint, answer, cross-complaint, if any, and answer to any cross-complaint).

2. Filing and Electronic Submission of trial documents

In an effort to reduce the number of in-person appearances in the PI Hub Courts, in addition to the parties filing and serving the Trial Documents at least five calendar days prior to the FSC, two court days prior to the FSC, the parties must provide the PI Hub Court with the trial binders in electronic form (see below). This will allow parties to appear remotely for the FSC and provide the PI Hub Courts with the opportunity to review the trial binders to determine whether parties are ready for trial. Hard copies of the trial binders will continue to be required for the trial.

a. The parties must submit in one PDF conformed copies of the joint statement of the case, joint witness list, joint list of jury instructions, full-text joint and contested jury instructions, joint and/or contested verdict form(s), joint exhibit list, joint deposition designation chart, and operative pleadings as listed in paragraph C.1. above (Tabs C through J).

b. The trial briefs and Motions in Limine, oppositions, and replies, if any, must be submitted in a separate PDF as listed in paragraph

1 C.1 above (Tabs A and B). **If a Motion in Limine and exhibits**
2 **thereto exceed 10 pages, the parties may submit just the face**
3 **page of the motion.** (The entire motion will still need to be
4 brought to the trial in the appropriate binder.)

5 c. The PDFs must be text searchable.

6 d. The PDFs must be bookmarked which is essentially an electronic
7 tab so that the PI Hub Court is able to find and navigate among the
8 trial documents.

9 (See [https://helpx.adobe.com/acrobat/using/page-thumbnails-](https://helpx.adobe.com/acrobat/using/page-thumbnails-bookmarks-pdfs.html)
10 [bookmarks-pdfs.html](https://helpx.adobe.com/acrobat/using/page-thumbnails-bookmarks-pdfs.html) for bookmarking instructions.)

11 e. The PDFs must be emailed to the applicable email address listed
12 below:

13 Department 27 at sscdept27FSC@LACourt.org

14 Department 28 at sscdept28FSC@LACourt.org

15 Department 29 at sscdept29FSC@LACourt.org

16 Department 30 at sscdept30FSC@LACourt.org

17 Department 31 at sscdept31FSC@LACourt.org

18 Department 32 at sscdept32FSC@LACourt.org

19 f. The subject line in the email must include identifying case
20 information as follows:

21 [Insert Case Number] Trial Readiness Binder, FSC, [Insert
22 MM/DD/YEAR of Hearing Date] (e.g., 20STCV00001 Trial
23 Readiness Binder, FSC 01/11/2022).

1 g. Each email should have two PDFs attached – one containing the
2 trial documents and the other containing the trial briefs and
3 Motions in Limine, if applicable.

4 h. The parties need not email the evidentiary exhibit binders to the
5 PI Hub Court for the FSC. However, the parties shall prepare the
6 exhibit binders as required (see section 3. Evidentiary Exhibits,
7 below) and be prepared to represent to the PI Hub Court that the
8 binders have been properly prepared. Hard copies of the exhibit
9 binders will be required for the trial court.

10 3. Evidentiary Exhibits

11 The parties shall jointly prepare (and be ready to temporarily lodge for
12 inspection at the FSC) three sets of tabbed, internally paginated by document, and properly
13 marked exhibits, organized numerically in three-ring binders (a set for the trial court, the judicial
14 assistant, and the witnesses). The parties shall mark all non-documentary exhibits and insert a
15 simple written description of the exhibit behind the corresponding numerical tab in the exhibit
16 binder.

17 D. Failure To Comply with Final Status Conference Obligations

18 The PI Hub Courts have the discretion to require any party or counsel of record
19 who fails or refuses to comply with this Standing Order to show cause why the court should not
20 impose monetary, evidentiary, and/or issue sanctions (including the entry of a default or the
21 striking of an answer) (Code of Civil Procedure, section 575.2).

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1 **13. Mandatory Settlement Conferences**

2 Mandatory Settlement Conferences (MSC) are available on a virtual platform hosted by
3 the Beverly Hills Bar Association at ResolveLawLA.com. MSCs are conducted by volunteer
4 attorneys from the American Board of Trial Advocates, the Association of Southern California
5 Defense Counsel, the Consumer Attorneys Association of Los Angeles, and the Beverly Hills
6 Bar Association and are overseen by the court.

7 MSCs are available in cases with two sides¹ 1) by stipulation, or 2) by court order at the
8 Final Status Conference. If parties stipulate to participate in a ResolveLawLA MSC, they must
9 seek leave of court to do so, by making an ex parte application using the PI Hub MSC
10 Stipulation form. Both parties should appear at the ex parte hearing. At the Final Status
11 Conference, the court may order parties to participate in a MSC if the court feels that it could
12 assist the parties in resolving the case.

13 Whether by stipulation or court order, parties must access the ResolveLawLA website
14 at www.ResolveLawLA.com to create an account and register the case for MSC within two court
15 days of the court's order of the MSC. Plaintiff or his, her or their counsel (plaintiff) must
16 coordinate with defendant or his, her or their counsel (defendant) and select a mutually agreed
17 upon date and time for the MSC prior to the trial date. Plaintiff shall also provide the name,
18 email address, and phone number for Defendant when registering the case for an MSC.

19 A MSC brief shall be lodged by each party at ResolveLawLA.com and served
20 on all parties not less than five court days before the scheduled MSC. The settlement
21 conference statement shall be limited to five pages on the MSC Brief and 10 pages for exhibits.

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23 ¹Cases with cross-complaints or separately represented defendants are not eligible.

1 ResolveLawLA MSCs are available at 9 a.m. and 1:30 p.m. Monday through Friday,
2 excluding court holidays, and are conducted on a virtual platform. After a MSC is scheduled,
3 the ResolveLawLA system will send notifications via text and/or email and will include a link
4 for counsel, the parties, and insurance representatives to join the MSC remotely.

5 Pursuant to California Rules of Court, rule 3.1380(b) and Superior Court, Los Angeles
6 County, Local Rules, rule 3.25(d), counsel, the parties, and persons with full authority to settle
7 the case (including insurance company representatives) must attend the MSC virtually unless a
8 judicial officer has excused the virtual appearance for good cause. Once defendants are notified
9 that a case has been scheduled for a MSC, defendants shall create their own login to the
10 ResolveLawLA.com system, and shall list all parties, party representatives and insurance
11 adjusters' names, phone numbers, and emails where indicated. In the event the MSC needs to be
12 canceled or rescheduled, it must be canceled through ResolveLawLA.

13 If the case settles before a scheduled MSC, parties shall forthwith notify the PI Hub Court
14 to which the case is assigned of such settlement. The parties should also document their
15 settlement agreement in writing signed by all parties whether before or at the scheduled MSC.

16 **14. Trials**

17 The PI Hub Courts do not conduct trials. On the trial date, all parties and/or their trial
18 counsel **must appear in person with trial and exhibit binders** in the PI Hub Court assigned to
19 the case. Upon confirming that the parties are trial-ready, the PI Hub Court will obtain a trial
20 court assignment from Stanley Mosk Courthouse, department 1, and will inform the parties
21 and/or trial counsel of the assignment. The parties then have 20 minutes within which to exercise
22 a peremptory challenge to the assigned trial court, assuming that party had not previously
23 exercised the party's right to make such a challenge.

1 Should a plaintiff fail to appear at trial, the PI Hub Court will dismiss the case without
2 prejudice. (Code of Civil Procedure, section 581(b)(3).) If a defendant fails to appear at trial, the
3 PI Hub court will obtain a trial court assignment from department 1 and the plaintiff will
4 proceed with an uncontested trial pursuant to Code of Civil Procedure section 594 and *Warden*
5 *v. Lamb* (1929) 98 Cal.App. 738, 741.

6 **15. Sanctions**

7 The court has discretion to impose sanctions for any violation of this Standing Order.
8 (Code of Civil Procedure, sections 128.7, 177.5, 187; Government Code, section 68608(b);
9 California Rules of Court, rule 2.30.)

10
11 DATED: September 20, 2022



Judge David J. Cowan
Supervising Judge, Civil Division